Kevin D Turnage

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Plaintiff Pro Se

UNITED STATES DISTRICT COURT

FOR THE DISTRICT OF ARIZONA

Kevin D Turnage, Plaintiff, v. **ROBERT F. KENNEDY, JR.,** Secretary, U.S. DEPARTMENT OF HEALTH AND HUMAN SERVICES, Defendant.	Case No.: CV-25-03367-PHX-SMB **~~THIRD~~FOURTH AMENDED COMPLAINT** **(Jury Trial Demanded)**

I. ~~PRELIMINARY STATEMENT~~INTRODUCTION

~~1.~~ This is an action for employment discrimination ~~and~~ based on race, sex, religion, age, and disability; retaliation ~~brought pursuant to Title VII of the Civil Rights Act~~

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of 1964, as amended, 42 U.S.C. § 2000e, *et seq.* ("Title VII"), and the Rehabilitation Act of 1973, 29 U.S.C. § 701, *et seq.* ("Rehabilitation Act").

2. Plaintiff Kevin D. Turnage alleges that the Defendant, acting through the Indian Health Service ("IHS"), discriminated against him based on his Disability, Race, and Sex and retaliated against him for engaging in protected Equal Employment Opportunity ("EEO") activity.

II. JURISDICTION AND VENUE

3.7. under This Court has subject matter jurisdiction over this action pursuant to 28 U.S.C. § 1331 (federal question), 42 U.S.C. § 2000e-16 (federal employment anti-discrimination), and whistleblower laws; interference with and retaliation for exercising rights under the Family and Medical Leave Act; and 29 U.S.C. § 794a.

3.1. Venue is proper in the District of Arizona pursuant to 28 U.S.C. § 1391(b) and 42 U.S.C. § 2000e-5(f)(3) because the unlawful employment practices alleged herein were committed within this judicial district, and the employment records relevant to the practice are maintained and administered in this districtgovernmental burdening of Plaintiff's sincere religious exercise in violation of the Religious Freedom Restoration Act and the First Amendment to the U.S. Constitution.

2. IIIPlaintiff alleges that Defendants, acting through the Indian Health Service ("IHS"), subjected him to a continuous pattern of retaliatory adverse personnel actions, including placing him on indefinite non-duty status, stripping him of his

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core duties, and creating a hostile work environment, immediately after he engaged in protected EEO and whistleblower activities. Plaintiff further alleges that these actions substantially burdened his sincerely held religious beliefs and were taken without the due process required by law.

3. This amendment is filed to consolidate claims, name the proper defendants only, and clarify the statutory bases for relief. Plaintiff withdraws all claims previously asserted under 18 U.S.C. §§ 1001 and 1519.

II. PARTIES

~~5.~~4. Plaintiff~~:~~ Kevin D. Turnage is a citizen of the United States and a resident of Gilbert, Arizona. At all times relevant to this Complaint, Plaintiff was ~~employed by~~ a career GS-0610-12 employee of the Indian Health Service~~, an agency within~~ serving as a Nurse Consultant / Policy & Procedures Officer at the ~~U.S. Department of Health and Human Services.~~Phoenix Indian Medical Center ("PIMC").

~~6.~~5. Defendant~~:~~ Robert F. Kennedy, Jr.~~-~~ is the Secretary of the U.S. Department of Health and Human Services ("HHS"). He is named in his official capacity only ~~as the head of the federal department wherein the alleged discrimination and retaliation occurred, pursuant to 42 U.S.C. § 2000e-16(c).~~.

6. Defendant Indian Health Service is a federal agency within HHS and is Plaintiff's employing agency.

III. JURISDICTION AND VENUE

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7. This Court has subject matter jurisdiction over this action pursuant to 28 U.S.C. §§ 1331 (federal question) and 1343(a)(4) (civil rights).

8. Jurisdiction is specifically conferred by Title VII of the Civil Rights Act of 1964, the Age Discrimination in Employment Act ("ADEA"), the Americans with Disabilities Act ("ADA") as incorporated by the Rehabilitation Act of 1973, the Family and Medical Leave Act ("FMLA"), the Whistleblower Protection Act ("WPA"), the Civil Service Reform Act ("CSRA"), the Religious Freedom Restoration Act ("RFRA"), and the First Amendment.

9. Venue is proper in the District of Arizona pursuant to 28 U.S.C. § 1391(b)(2) because a substantial part of the events giving rise to the claims occurred in Arizona.

10. This is a "mixed case" within the meaning of 5 U.S.C. § 7702(a), involving appealable adverse personnel actions and claims of unlawful discrimination.

~~IV. EXHAUSTION OF ADMINISTRATIVE REMEDIES~~

~~7.~~11. Plaintiff has exhausted his administrative remedies. The Equal Employment Opportunity Commission issued a final decision on his appeal (EEOC Appeal No. 2024004239) on September 2, 2025. This action is timely filed within 90 days of receipt of that decision.

~~8. On March 29, 2022,~~ **IV.** ~~Plaintiff contacted an EEO counselor regarding the discriminatory and retaliatory acts described herein.~~

FACTUAL BACKGROUND

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A. Employment

12. Plaintiff has been a federal employee since January 18, 2011, and an employee of the IHS since July 2017. He accepted the GS-0610-12 supervisory position at PIMC on March 28, 2022.

B. Protected Activities

13. Activity 1: On March 21, 2023, Plaintiff sent an email to PIMC executive leadership reporting sexual harassment and a hostile work environment.

~~9.~~ Activity 2: On April 13, 2023, Plaintiff filed a formal EEO complaint ~~with the~~ (Agency ~~(Agency Case~~ No. HHS-IHS-0296-2023~~).~~

~~10. On July 11, 2024, the Agency issued a Final Agency Decision.~~

~~11. This Complaint is timely filed within 90 days of receipt of the final administrative decision on appeal.~~

~~**V. STATEMENT OF FACTS**~~

~~**A. Protected Activity (2023**~~)

~~12. On or about March 21, 2023, Plaintiff engaged in protected activity by sending an email reporting Sexual Harassment, Hostile Work Environment, and agency failure to Executive Leadership.~~

~~13. Specifically, Plaintiff reported to Executive Leadership that he was witnessing severe mismanagement and hostile conduct that violated federal employment protections.~~

14. ~~On April 13, 2023, Plaintiff filed a formal EEO complaint~~ alleging discrimination~~,~~

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~~hostile work environment,~~ and retaliation ~~(HHS-IHS-0296-2023).~~.

15. ~~Management officials, specifically~~ Activity 3: On May 25, 2025, Plaintiff served a formal Protected Disclosure Notice on PIMC officials Clinton Pope, Endreya McCabe, and Debra Ward-Lund.

16. Activity 4: Throughout June 2025, Plaintiff made a series of protected disclosures to external oversight bodies, including the Office of Special Counsel (OSC), HHS Office of Inspector General (OIG), Centers for Medicare & Medicaid Services (CMS), and the Joint Commission regarding waste, fraud, and dangers to patient safety.

C. Retaliatory Actions

~~15.~~17. PIMC management officials, including Debra Ward-Lund and Brandi Benjamin, were aware of ~~this~~Plaintiff's protected ~~activity~~activities as of March 2023.

~~B. Protected Activity (2025)~~

~~16. On **May 25, 2025**, Plaintiff sent a formal Protected Disclosure Notice to **Clinton Pope, Endreya McCabe**, and **Debra Ward-Lund**.~~

~~17. Throughout **June 2025**, Plaintiff submitted multiple reports to the **HHS Office of Inspector General (OIG)** and the **Centers for Medicare & Medicaid Services (CMS)**. These reports specifically detailed gross mismanagement, abuse of authority, and violations of law (including CMS regulations) by **Clinton Pope** and other agency officials.~~

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~~C.~~ Adverse ~~**Employment Actions**~~

~~18. Following Plaintiff's protected activities in both 2023 and 2025, the Agency engaged in a series of adverse employment actions against Plaintiff.~~

18. Action 1: On March 21, 2023 ~~**(Administrative Leave):** Approximately~~, approximately 2 hours and 41 minutes after Plaintiff's ~~protected disclosure~~ email~~, the Agency~~ (Activity 1), Defendants placed ~~Plaintiff on 10 business days of~~him on administrative leave, confiscated ~~all government-issued property~~his credentials, and had him escorted ~~off federal property by security personnel~~from the premises.

19. Adverse Action 2: On March 2, 2023, Plaintiff received an unjustifiably low Performance Management Appraisal Plan (PMAP) rating.

20. Adverse Action 3: Between January and April 2023, Defendants deliberately delayed the processing of Plaintiff's FMLA paperwork for over two months.

21. Adverse Action 4: On May 28, 2025 ~~**(Workflow Removal):** Just~~, just three days after Plaintiff's ~~May 25, 2025 Protected Disclosure Notice,~~protected disclosure (Activity 3), PIMC official Clinton Pope ~~issued a directive ordering~~ordered Plaintiff to remove himself from all approval workflows~~, effectively stripping Plaintiff of his core job responsibilities~~.

~~**June 27, 2025 (Administrative Leave):**~~Adverse Action 5: Following Plaintiff's ~~reports to CMS and OIG regarding Mr. Pope's conduct, **Dr. Endreya McCabe** issued a written notice placing Plaintiff on administrative leave effective immediately.~~

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- ~~**July 11, 2025 (Investigative Leave): Dr. Endreya McCabe** verbally notified Plaintiff that his administrative leave was being converted to 30 days of Investigative Leave. This action was taken without providing the proper written notice or regulatory justification required by federal personnel regulations.~~
- ~~**November 24, 2025 (Notice Leave): Dr.**~~ June 2025 disclosures, Dr. Endreya McCabe placed Plaintiff on ~~"Notice Leave" until further notice.~~

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19. ~~The stated reasons for these sequential leave actions were ostensibly for investigation. Plaintiff alleges these reasons were pretextual and designed to silence his protected disclosures regarding mismanagement and regulatory violations.~~

~~**D. Causal Nexus**~~

20. ~~**2023 Nexus:** The adverse actions in 2023 occurred in extremely close temporal proximity to Plaintiff's protected activity. Specifically, the administrative leave and escort from property occurred only 2 hours and 41 minutes after Plaintiff sent the protected disclosure email on March 21, 2023.~~
21. ~~**2025 Nexus:** The adverse actions in 2025 are directly linked to Plaintiff's specific disclosures regarding **Clinton Pope** and **Endreya McCabe**.~~
    - ~~**Clinton Pope's** directive on May 28, 2025, to remove Plaintiff from workflows occurred only three days after Plaintiff served the Protected Disclosure Notice on May 25, 2025.~~

Dr. Endreya McCabe'sa series of leave placements (escalating punitive leaves: on June, July, and November 27, 2025) followed directly after Plaintiff's reports to external oversight bodies (OIG and CMS) regarding the conduct of Pope and agency leadership.

22. There was no legitimate, non-discriminatory reason for the Agency's actions. The Agency's reliance on alleged "threats" or, administrative necessity is false because the allegations were never corroborated, and the leave procedures repeatedly violated the Indian Health Manual and federal regulations regarding adverse personnel actions.

VI. CAUSES OF ACTION

COUNT I RETALIATION (Violation of Title VII and/or Rehabilitation Act)

23. Plaintiff incorporates the allegations in paragraphs 1 through 22 as if fully set forth herein.

24. Plaintiff engaged in protected activity by opposing discrimination and participating in the EEO process.

22. Defendant took materially adverse actions against Plaintiff, including placementleave; on administrative/July 11, 2025, investigative leave for 30 days without written charges or a legitimate-interest analysis as required by 5 U.S.C. § 7513(b); and on November 24, 2025, indefinite "Notice Leave," resulting in a constructive suspension of over 108 workdays.

D. Religious Exercise

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23. Plaintiff Kevin D. /notice leaveTurnage is a resident of Gilbert, Arizona and a practicing Christian whose religious beliefs are grounded in the teachings of the Holy Scriptures.

24. Plaintiff sincerely believes that honest labor and providing for one's household are religious duties commanded by God.

25. Plaintiff's religious beliefs are based on Biblical teachings including:

26. Genesis 2:15 – establishing labor as part of God's design for mankind.

27. 2 Thessalonians 3:10 – "if any would not work, neither should he eat."

28. 1 Timothy 5:8 – requiring a person to provide for his household.

29. Plaintiff believes that engaging in honest labor is both a moral and religious obligation and an essential part of living in accordance with his faith.

30. Defendant Robert F. Kennedy Jr., as Secretary of the United States Department of Health and Human Services, is responsible for administering federal programs and policies that directly affect Plaintiff.

31. Actions taken by Defendant and/or agencies under Defendant's authority have interfered with Plaintiff's ability to engage in lawful employment and fulfill his religious duty to work.

32. These governmental actions effectively prevent Plaintiff from performing honest labor and providing for his household as required by his sincerely held religious beliefs.

33. As a result, Plaintiff has been placed in the position of being unable to comply

with his religious obligation to work and provide for his family.

34. Plaintiff believes that such interference constitutes a substantial burden on his religious exercise.

35. The Religious Freedom Restoration Act provides that the federal government may not substantially burden a person's exercise of religion unless the burden is the least restrictive means of furthering a compelling governmental interest.

36. Plaintiff has suffered harm and continues to suffer harm as a result of Defendant's actions.

37. Defendant's actions violate Plaintiff's rights under the First Amendment to the United States Constitution, the Religious Freedom Restoration Act, and Title VII of the Civil Rights Act.

38. Plaintiff brings this action to seek protection of his religious liberty and to obtain relief from government actions that interfere with his ability to live in accordance with his faith.

E. Discriminatory Animus

39. Plaintiff is a member of multiple protected classes: Caucasian (race), male (sex), Christian (religion), age 49 (at the time of events), and an individual with a disability (Type 1 Diabetes).

40. Similarly situated employees outside of Plaintiff's protected classes were treated more favorably under comparable circumstances.

~~25.~~41. The totality of Defendants' conduct, including the public security escort,

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confiscation of property, and ~~restriction of access~~indefinite removal from his position, created a hostile and abusive work environment.

V. CAUSES OF ACTION

COUNT I – DISPARATE TREATMENT (Title VII - Race, Sex, Religion)

42. Plaintiff incorporates the allegations in the preceding paragraphs.

43. Plaintiff is a member of protected classes, was qualified for his position, suffered adverse employment actions, and similarly situated employees outside his protected classes were treated more favorably.

COUNT II – RETALIATION (Title VII)

46. Plaintiff incorporates the allegations in the preceding paragraphs.

47. Plaintiff engaged in protected activity, of which Defendants were aware.

48. In response, Defendants took materially adverse actions that would dissuade a reasonable worker from making or supporting a charge of discrimination. *See Thompson v. North American Stainless, LP*, 562 U.S. 170 (2011).

49. A causal connection exists ~~between the protected activity and the adverse actions.~~ , established by the extreme temporal proximity of 2 hours and 41 minutes.

~~26.~~50. But for Plaintiff's protected activity, the adverse actions would not have occurred.

~~27. Defendant's actions were willful, malicious, and in reckless disregard of Plaintiff's federally protected rights.~~

COUNT ~~III~~ – AGE DISCRIMINATION (~~Violation of Title VII / Rehabilitation~~

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~~Act~~ADEA)

~~28.~~52. Plaintiff incorporates the allegations in the preceding paragraphs ~~1 through 27 as if fully set forth herein~~.

~~29.~~53. Plaintiff, age 49, is a member of ~~a protected~~the class ~~based on Disability, Race, and Sex~~protected by the ADEA.

~~30. Plaintiff was qualified for his position and performing his duties satisfactorily.~~

~~31.~~54. ~~Defendant~~Defendants subjected ~~Plaintiff~~him to adverse employment actions~~, including indefinite leave and removal from duty~~ because of his age.

~~32. Similarly situated employees outside of Plaintiff's protected class were treated more favorably. For example, employees outside of Plaintiff's protected class were not subjected to immediate administrative leave and escort for similar alleged conduct or policy disagreements.~~

~~33. Defendant's conduct was motivated by discriminatory animus.~~

~~COUNT III HOSTILE WORK ENVIRONMENT~~

COUNT IV – DISABILITY DISCRIMINATION (Rehabilitation Act)

55. Plaintiff incorporates the allegations in the preceding paragraphs.

56. Plaintiff is a qualified individual with a disability (Diabetes Mellitus Type 1).

57. Defendants failed to provide reasonable accommodation or engage in the interactive process and subjected him to adverse actions because of his disability.

COUNT V – FMLA INTERFERENCE AND RETALIATION

~~34.~~59. Plaintiff incorporates the allegations in the preceding paragraphs ~~1 through~~

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~~33 as if fully set forth herein~~.

60. Plaintiff was ~~subjected~~an eligible employee entitled to ~~unwelcome harassment based on~~FMLA leave for a serious health condition.

~~35.~~61. Defendants interfered with his ~~Disability, Race, and Sex and/or prior protected EEO activity~~FMLA rights by deliberately delaying the processing of his request and denying timely reinstatement and retaliated against him for exercising these rights.

~~36. The harassment was sufficiently severe or pervasive to alter the conditions of Plaintiff's employment and create an abusive working environment.~~

~~Specific instances of harassment included: Publicly escorting~~ **COUNT VI – WHISTLEBLOWER RETALIATION (WPA)**

63. Plaintiff ~~off~~incorporates the ~~premises~~allegations in the preceding paragraphs.

64. Plaintiff made protected disclosures under 5 U.S.C. §§ 2302(b)(8)-(9).

65. In response, Defendants took prohibited personnel actions against him. The causal connection is established by ~~security,~~temporal proximity and ~~repeatedly extending leave status~~the lack of a legitimate-interest analysis. *See Kewley v. Dep't of Health and Human Servs.*, 153 F.3d 1357 (Fed. Cir. 1998).

COUNT VII – DUE PROCESS VIOLATIONS (CSRA)

67. Plaintiff incorporates the allegations in the preceding paragraphs.

68. As a career federal employee, Plaintiff has a property interest in his employment.

~~37.~~69. Defendants deprived him of this interest by placing him on a constructive

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suspension exceeding 14 days without ~~proper written justification or~~the procedural due process guaranteed by 5 U.S.C. § 7513(b), including written notice of charges and an opportunity to respond.

~~38. There is a basis for imputing liability to the employer because the harassment was committed by supervisors, or the employer knew of the harassment and failed to take prompt remedial action.~~

~~VII~~COUNT VIII – VIOLATION OF THE RELIGIOUS FREEDOM RESTORATION ACT (RFRA)

71. Plaintiff incorporates the allegations in the preceding paragraphs.

72. Defendants' actions in forcing Plaintiff onto indefinite non-duty status constitute a substantial burden on his sincere religious exercise of his duty to work.

73. This burden was not the least restrictive means of furthering a compelling governmental interest.

COUNT IX – VIOLATION OF THE FIRST AMENDMENT (Free Exercise Clause)

76. Plaintiff incorporates the allegations in the preceding paragraphs.

77. Defendants' actions were not neutral or generally applicable but instead targeted Plaintiff's ability to engage in his religious practice of work, impermissibly coercing him into conduct that violates his religious beliefs.

VI. PRAYER FOR RELIEF

WHEREFORE, Plaintiff Kevin D. Turnage respectfully requests that this Court enter judgment in his favor and grant the following relief:

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A. ~~Enter a~~A declaratory judgment that the acts and practices of ~~the Defendant complained of herein are in violation of Title VII of the Civil Rights Act of 1964 and the Rehabilitation Act of 1973;~~Defendants violated federal law,

B. ~~Order Defendant~~A permanent injunction ordering Defendants to reinstate Plaintiff ~~to~~ , cease all retaliatory and discriminatory actions, and expunge all related negative records from his ~~former position with full~~ personnel file;

~~B.~~C. An award of back pay, front pay, and all lost wages, seniority, and benefits, ~~or front pay in lieu thereof;~~with interest.

~~C. Award Plaintiff back pay, including all lost wages, salary, bonuses, and benefits, with pre-judgment interest;~~

D. ~~Award Plaintiff~~An award of compensatory damages for emotional distress~~, pain and suffering,~~ and reputational harm ~~in an amount to be determined at trial;~~;

~~E. Order the expungement of all negative records, disciplinary actions, and termination documents from Plaintiff's personnel file;~~

E. ~~Award Plaintiff his costs of suit, including~~ An award of punitive damages as authorized by statute.

F. An award of reasonable attorney's fees ~~(if~~and costs pursuant to 42 U.S.C. § 2000e-5(k), 28 U.S.C. §§ 2412-2413, and any other applicable~~) and expert witness fees~~ statutes; and

G. ~~Grant such~~Such other and further relief as the Court deems just and proper.

JURY DEMAND

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Plaintiff hereby demands a trial by jury on all issues so triable.

DATED this ~~15th~~5th day of ~~January,~~March 2026.

Respectfully submitted,

/s/ Kevin D. Turnage

Kevin D. Turnage

Plaintiff, Pro Se

CERTIFICATE OF SERVICE

I hereby certify that on this 5th day of March 2026, I will electronically file the foregoing with the Clerk of the Court using the CM/ECF system, which will constitute service upon all parties of record.

/s/ Kevin D. Turnage

Kevin D. Turnage

Plaintiff, Pro Se

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